Malawi
Competition and Fair Trading Commission

I. Introduction

The Competition and Fair Trading Commission (CFTC) is a statutory government agency that was established under the Competition and Fair Trading Act (CFTA), tasked with regulating, monitoring, and preventing trade practices that are likely to substantially affect competition and fair trading in Malawi. Its key functions include investigating anticompetitive conduct, assessing merger and acquisitions, conducting market surveillance, and addressing consumer complaints.

Until recently, the Commission relied predominantly on manual processes and basic digital tools such as Microsoft Excel for data entry, case tracking and generating reports. This reliance resulted in inefficiencies such as prolonged case resolution times, fragmented data management, and poor interdepartmental coordination.

These operational bottlenecks undermined the Commission's ability to respond promptly to market abuses and hindered its capacity to build public trust through transparent enforcement.

II. Migration to Digital Information System

As competition authorities around the world adopt digital tools to improve the effectiveness of enforcement, the integration of sophisticated information systems into regulatory frameworks is becoming increasingly essential. Digital platforms enable regulatory bodies to streamline processes, enhance data accuracy, and improve stakeholder engagement. In contrast, many developing economies continue to rely on manual procedures and fragmented information systems. These limitations often result in inefficiencies, delayed enforcement actions, and weaker market oversight.

This case study highlights Malawi's approach to addressing such challenges through the deployment of the Integrated Management Information System (IMIS) by the Competition and Fair Trading Commission (CFTC) in April 2025. As a cornerstone of Malawi's broader digital transformation agenda, IMIS aims to modernize competition regulation by automating procedural workflows, improving data management and strengthening stakeholder engagement.

In this regard, the CFTC launched the Integrated Management Information System (IMIS) in April 2025. This initiative forms the backbone of its digital transformation strategy aimed at automating regulatory processes, improving data handling and streamlining communication with external stakeholders.

The IMIS was developed to replace manual workflows with an end-to-end digital case management, from complaint and application submission to case resolution. The system reinforces the Commission's objective of building a responsive, transparent and data-driven enforcement framework that aligns with international best practices.

III. Key Functionalities and the Operational Impact of IMIS

The IMIS provides a structured, centralized platform for digitizing regulatory processes. One of its core features is the digital submission and tracking of regulatory filings. Complaints, merger notifications, and applications for authorization are now submitted digitally and assigned to relevant officers for assessment.

Where hard copies are received, case registrars scan and upload documents directly into the system. The system also includes a web-based submission portal for both internal and external users. Businesses and consumers can lodge complaints, request negative clearances, and submit merger applications electronically, complete with supporting documentation.

The system also provides case status notifications through email, although this feature is currently enabled for internal users. Plans are underway to extend this service to external stakeholders through integration with third-party platforms such as Gmail and Yahoo.

For internal operations, the IMIS features dashboards that enable case officers to monitor deadlines, assign tasks, and track progress. Additionally, supervisors can access detailed logs indicating bottlenecks, key interventions, and case milestones. This effectively provides a mechanism for performance tracking and accountability. Furthermore, the system generates periodic reports on case trends, delays and outcomes.

Since its launch, IMIS has facilitated the processing of 63 matters, which include consumer complaints on unfair trading practices, merger assessments, and investigations of anticompetitive practices. In doing so, it has improved enforcement timelines, strengthened record-keeping, and reduced administrative burdens across the Commission's operational units.

IV. Future Outlook of IMIS

Although the IMIS does not yet feature advanced data analytics or artificial intelligence, its structured data environment creates a foundation for future integration with computational tools. The Commission aims to leverage this digital infrastructure to explore AI-driven case screening, market anomaly detection, and predictive enforcement mechanisms.

By moving toward data-driven decision-making, the CFTC hopes to improve its capacity to detect complex anticompetitive conduct and respond proactively. This strategic direction augurs well with Malawi Vision 2063 and aligns with emerging global trends in computational antitrust and positions the CFTC to participate more actively in international digital enforcement dialogues.

V. Conclusion

The implementation of IMIS represents a major milestone in the digital transformation of Malawi's competition regulation. It has improved the Commission's operational efficiency, enhanced transparency, and established a robust digital infrastructure capable of accommodating future technological innovations.

CFTC's nascent experience demonstrates that targeted digital investments, even in resource constrained settings, can yield significant institutional benefits. As digital markets become more complex, the ability of regulators to adapt and innovate through technology will be crucial to effective market oversight and consumer protection.